



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 1ST DAY OF DECEMBER, 2025

BEFORE

THE HON'BLE MR. JUSTICE G BASAVARAJA

CRIMINAL APPEAL NO. 833 OF 2022 (C-)

BETWEEN:

UMESH S.
S/O SHIVANNA,
54 YEARS
ASST. SUB-INSPECTOR
TUMKURU RURAL POLICE STATION
R/O PUTTANNA COMPOUND,
MARUTHI NAGAR, 2ND CROSS,
GUBBI TOWN,
DISTRICT TUMKUR - 572216

...APPELLANT

(BY SRI. V. MANJUNATH PRASAD, ADV.)

AND:

THE STATE OF KARNATAKA
WOMEN POLICE STATION, TUMKURU
(BY LD. HIGH GOVT. PLEADER) - 572104

...RESPONDENT

(BY SRI. B. LAKSHMAN, HCGP)

THIS CRL.A IS FILED U/S.374(2) CR.PC PRAYING TO SET ASIDE THE IMPUGNED JUDGMENT AND ORDER OF CONVICTION DATED 28.01.2022 AND SENTENCE DATED 31.01.2022 ON THE FILE OF THE II ADDL. DISTRICT AND SESSIONS JUDGE, TUMAKURU IN S.C.NO.54/2017, CONVICTING THE APPELLANT/ACCUSED NO.1 FOR THE OFFENCE P/U/S 376(2)(a)(iii) AND 376(2)(1) OF IPC.

THIS APPEAL, COMING ON FOR FURTHER ARGUMENTS, THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE G BASAVARAJA



ORAL JUDGMENT

The appellant/accused No.1 has preferred this appeal against the judgment of conviction and order on Sentence dated 28th January, 2022 passed in SC No.54 of 2017 by the II Additional District and Sessions Judge, Tumkur.

2. For the sake of convenience, the parties herein are referred to as per their status before the trial Court.

3. The brief facts leading to this appeal are that the Inspector of Police, Women Police Station, Tumkur submitted charge-sheet against the accused for the offence punishable under Section 376(2)(a)(iii) and Section 202 read with Section 36 of Indian Penal Code. Accused No.1 is charge-sheeted for the offence punishable under Sections 376(2)(a)(iii) and Section 202 of Indian Penal Code, and accused No.2 is charge-sheeted for the offence punishable under Section 202 read with Section 37 of Indian Penal Code.

4. It is alleged by the prosecution that on the intervening night of 14th and 15th January, 2017 at 02.15



am, Umesh-Assistant Sub-Inspector of Police working in Tumakuru Rural Police Station and Mallesh-CW3 Homeguard, found CW2-Prosecutrix in front of Sangeetha Bar near Antharasanahalli bye-pass bridge, when accused No.1 Assistant Sub-Inspector of Police was on night rounds. Accused No.1 intercepted Bolero jeep bearing registration No.KA-34/M-5194 driven by accused No.2 and made prosecutrix to sit in the middle row of the jeep and instructed accused No.2 to drive the jeep to drop the prosecutrix. Accused No.1 ravished prosecutrix during the period of conveyance from Antharasanahalli bridge to Nrupathunga bus-stand and thereby committed the offence of rape and accused No.2 has intentionally not disclosed the offence. Thus, committed the offence punishable under Section 202 r/w Section 36 of Indian Penal Code. After completion of investigation, Investigating Officer submitted the charge-sheet, against the accused. After filing the charge-sheet, case was registered in CC No.37 of 2017 by the II Addl. Senior Civil Judge, Tumkur and thereafter, the case was committed to



the Court of Sessions and was registered as SC No.54 of 2017.

5. Upon hearing on charges, the trial Court has framed the charges against accused 1 and 2 for the offence punishable under Section 376(2)(a)(iii) and 376(2)(l) of Indian Penal Code and also under Section 202 read with Section 37 of Indian Penal Code. Charges have been read over and explained to accused 1 and 2. Having understood the same, accused pleaded not guilty and claimed to be tried.

6. On 13th January, 2022, the trial Court has amended the charge. The amended charge has been read over and explained to accused 1 and 2. Accused 1 and 2 pleaded not guilty and claimed to be tried.

7. To prove the case of the prosecution, in all 26 witnesses were examined as PW1 to PW26. 94 documents were marked as Ex.P1 to Ex.P94. Material objects were marked as MOs1 to 36. On closure of prosecution case evidence, statement under Section 313 of Code of Criminal



Procedure was recorded. The accused totally denied the evidence of prosecution case, however, did not choose to lead any defence evidence. Accused No.1 has submitted his written statement. 15 documents were marked as Ex.D1 to D15 through the prosecution witnesses.

8. Having heard the arguments on both sides, the trial Court has convicted accused No.1 for the offence punishable under Section 376(2)(a)(iii) and Section 376(2)(I) of Indian Penal Code and accused No.1 is acquitted for the offence under Section 202 of Indian Penal Code. The trial Court has also passed a sentence to undergo rigorous imprisonment for a period of 20 years with fine of Rs.50,000/- for the offence punishable under Section 376(2)(a)(iii) of Indian Penal Code. In default, to undergo further simple imprisonment for a period of one year. Further, the accused No.1 is sentenced to undergo rigorous imprisonment for a period of 20 years and to pay fine of Rs.50,000/- for the offence punishable under Section 376(2)(I) of Indian Penal Code. In default, to



undergo further simple imprisonment for a period of one year. Being aggrieved by this judgment of conviction and order on sentence, the appellant /accused No.1 has preferred this appeal.

9. Sri V. Manjunath Prasad, learned counsel appearing for the appellant submits that the trial Court has passed the judgment on the basis of assumptions and not on the basis of evidence available on record. He would submit that there is no application of judicious mind and the judgment is contrary to law, facts and probabilities of the case. In view of non-disclosure of identity of culprit before the medical officer in the history narrated by victim, the trial Court ought to have raised presumption under section 114(g) of Indian Evidence Act. The trial Court has failed to notice deliberate suppression of facts. The trial Court ought to have viewed the testimony of PWs1 to 3 as to the allegation of rape and to have suspected conspiracy with malafide intention. He would submit that since the charge itself was defective, no charge for the offence



under Section 376(2)(I) of Indian Penal Code was framed, but the appellant is sentenced to undergo imprisonment for 20 years which has led to miscarriage of justice. On all these grounds, it is sought to allow the appeal.

10. The Learned counsel for the appellant has produced the Gazette Notification of the Criminal law (Amendment) Act, 2018, which came into force on 21st April, 2018. He submits that the alleged offence took place on 14th January, 2017. However, the trial Court has committed an error in framing charge for the offence punishable under Section 376(2)(I) of Indian Penal Code, which is not permissible under law in view of Article 20(1) of the Constitution of India, as the amendment came into force on 21st April, 2018. As on the date of commission of offence, the provision of Section 376(2)(I) was not in force. However, the trial Court has committed a grave error in convicting the accused for the offence punishable under Section 376(2)(a)(iii) read with Section 34 of Indian Penal Code.

11. To substantiate his arguments, he has relied on the judgment of Hon'ble Supreme Court in the case of AMIT RANA



@ KOKA AND ANOTHER v. STATE OF HARYANA arising out of SLP (Crl.) No.140705 of 2023 decided on 22nd July, 2024. Further, the learned Counsel for the appellant has filed a Memo, in which it is stated as under:

"MEMO

The appellant humbly submits that, the above appeal was filed by challenging the conviction and sentence passed by the Special Court in SC No.54/2017 on the file of the Hon'ble Addl. District & Sessions Court at Tumkur.

It is further submitted that at the time of arguing the matter on merits it was found that, the sentence imposed by the convicting court is not correct as per law, as such relying on the reported judgment of the Hon'ble Supreme Court in Slp (Crl.)No.14705/2024 dated 22.07.2024, the Hon'ble Apex Court has reduced the sentence from 14 years to 10 years as per law. The sentencing of convicting court is now challenged and prayed to reduce the sentence to 10 years from 20 years in the interest of justice."

12. In addition to the above Memo, the learned counsel for the appellant has submitted that he is not going to press the conviction passed by the trial Court but only seek modification of sentence passed by the trial Court by bringing down the sentence from twenty years to ten years.



13. Upon hearing the arguments on both sides and on perusal of records, the following points would arise for my consideration:

1. Whether the appellant has made out ground to bring down the sentence passed by trial Court from twenty years to ten years?
2. What Order?

Regarding Point No.1:

14. Though the learned counsel for the appellant has submitted that he is not pressing the conviction passed by the trial Court, I have examined the materials placed before this Court. On re-appreciation of entire material on record, I do not find any error/illegality in the impugned judgment of conviction passed by the trial Court.

15. The trial Court has convicted the accused for commission of offence punishable under Section 376(2)(a)(iii) and 376(2)(I) of Indian Penal Code and passed the sentence to undergo rigorous imprisonment for a period of twenty years with fine of Rs.50,000/- for offence punishable under Section 376(2)(a)(iii) of Indian Penal Code and in default to undergo



further imprisonment for a period of one year. The accused is sentenced to undergo twenty years rigorous imprisonment and to pay fine of Rs.10,000/- for the offence punishable under Section 376(2)(I) of Indian Penal Code and in default to undergo further imprisonment for a period of one year. Both the sentences shall run concurrently.

16. Earlier to Criminal Law (Amendment) Act, 2013, the offence under Section 376(2)(a)(iii) of Indian Penal Code shall be punishable with rigorous imprisonment of either description for a term which shall not be less than seven years but which may extend to imprisonment for life and shall also be liable to fine. The Criminal Law (Amendment) Act 2013 came into force on 03rd February, 2013. In view of this amendment, the punishment for rape is amended as under:

"376. Punishment for rape.—

(1) Whoever, except in the cases provided for in sub-section (2), commits rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than seven years, but which may extend to imprisonment for life, and shall also be liable to fine

(2) Whoever,—

(a) being a police officer, commits rape—



- (i) *within the limits of the police station to which such police officer is appointed; or*
 - (ii) *in the premises of any station house; or*
 - (iii) *on a woman in such police officer's custody or in the custody of a police officer subordinate to such police officer; or*
- (b) *being a public servant, commits rape on a woman in such public servant's custody or in the custody of a public servant subordinate to such public servant; or*
- (c) *being a member of the armed forces deployed in an area by the Central or a State Government commits rape in such area; or*
- (d) *being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution, commits rape on any inmate of such jail, remand home, place or institution; or*
- (e) *being on the management or on the staff of a hospital, commits rape on a woman in that hospital; or*
- (f) *being a relative, guardian or teacher of, or a person in a position of trust or authority towards the woman, commits rape on such woman; or*



- (g) *commits rape during communal or sectarian violence; or*
- (h) *commits rape on a woman knowing her to be pregnant; or*
- (i) *commits rape on a woman when she is under sixteen years of age; or*
- (j) *commits rape, on a woman incapable of giving consent; or*
- (k) *being in a position of control or dominance over a woman, commits rape on such woman; or*
- (l) *commits rape on a woman suffering from mental or physical disability; or***
- (m) *while committing rape causes grievous bodily harm or maims or disfigures or endangers the life of a woman; or*
- (n) *commits rape repeatedly on the same woman,*

shall be punished with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.

Explanation.— For the purpose of this subsection,—

- (a) *"armed forces" means the naval, military and air forces and includes any member of the Armed Forces constituted under any law for the time being in force, including the paramilitary forces and any auxiliary forces*



that are under the control of the Central Government or the State Government;

- (b) "hospital" means the precincts of the hospital and includes precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation;*
- (c) "police officer" shall have the same meaning as assigned to the expression "police" under the Police Act, 1861 (5 of 1861);*
- (d) "women's or children's institution" means an institution, whether called an orphanage or a home for neglected women or children or a widow's home or an institution called by any other name, which is established and maintained for the reception and care of women or children."*

17. On perusal of the order on sentence passed by the trial Court, it is clear that the trial Court has not assigned any special reasons for passing sentence for a period of twenty years for both offences. The Hon'ble Supreme Court in the case of AMIT RANA (supra), at paragraphs 8 and 9 of the judgment, has observed as under:

"8. Since the conviction of the appellants under Section 307, IPC, is declined to be interfered with by us, necessarily the punishment for the said offence taking



note of the gravity of the crime has to be imposed. Since we are not proposing to enhance the sentence to imprisonment for life and the only option is to bring down the term of imprisonment from 14 years, there is absolutely no reason to hear the appellants in-person.

9. We have taken note of the fact that as a consequence of the attempt to do away with the life of the complainant, he had suffered spine injury and became paralysed in terms of the second part of the Section 307, IPC, the appellants are to be given the maximum corporeal sentence imposable under the first part of Section 307, IPC. Accordingly, the imposition of rigorous imprisonment for 14 years each to the appellants is converted to rigorous imprisonment for a period of 10 years. The order of sentence with respect to fine is kept intact. The appeal is thus allowed in part and the impugned judgment of the High Court and the judgment of the trial Court in S.T. No.281/2016 qua the appellants stands modified as above."

18. It is submitted by the learned counsel for the appellant that the age of the appellant is 62 years and the accused has already undergone imprisonment for a period of about nine years. Appellant is having aged mother and has to look after his wife and two children, as also, he has to perform marriage of his children. Considering the submission of the learned counsel for the appellant and keeping in mind the



aforesaid decision relied upon by the learned counsel for the appellant, I proceed to pass the following:

ORDER

- i. Appeal is allowed in part;
- ii. Judgment of conviction and order on Sentence dated 28th January, 2022 passed in SC No.54 of 2017 by the II Additional District and Sessions Judge, Tumkur, is confirmed. However, Order on sentence even dated, is modified as under:
 - a. The accused is sentenced to undergo rigorous imprisonment for a period of seven years with fine of Rs.50,000/- for offence punishable under Section 376(2)(a)(iii) of Indian Penal Code. In default of payment of fine, the accused shall undergo simple imprisonment for a period of one year;
 - b. Accused is sentenced to undergo rigorous imprisonment for a period of ten years and to pay fine of Rs.50,000/- for the offence punishable under Section 376(2)(I) Indian Penal Code. In default of payment of fine, the accused shall



further undergo simple imprisonment for a period of one year;

- c. Registrar (Judicial) of this Office is directed to send the modified conviction warrant to the concerned authorities;
 - d. The appellant is directed to deposit the fine amount. After depositing the fine amount, the appellant is entitled for set-off as provided under Section 428 of Code of Criminal Procedure for the period of term he has undergone imprisonment as an under trial prisoner, in this case.
- iii. After payment of fine, the deposited fine amount shall be disbursed to PW3 as per the order of the trial Court;
- iv. The remaining order passed by the trial Court is kept intact.

Sd/-
(G BASAVARAJA)
JUDGE